MASTER SERVICES AGREEMENT

Juneau Digital Designs LLC Services Agreement

This Master Services Agreement ("Agreement") is entered into between:

Provider: Juneau Digital Designs LLC, a Florida limited liability company located at [YOUR ADDRESS], Ocoee, FL ("we," "us," or "JDD")

Client: _____________________________________, a ______________ located at _____________________________________ ("you," "your," or "Client")

Effective Date: ____________________

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1. SERVICES

Provider will deliver the services described in the plan tier selected by Client (the "Plan") as set forth in **Schedule A** attached to this Agreement. Available plans:

- **Starter ($117/month + $100 one-time onboarding fee) —** Website + hosting + maintenance + monthly reports
- **Growth ($297/month) —** Starter tier services plus AI voice agent (inbound + outbound + call summaries)
- **Enterprise ($697/month) —** Growth tier services for up to three (3) separate websites with pooled call volume and priority support

The specific deliverables, call volume allotments, and support levels for each plan are defined in Schedule A.

2. ONBOARDING AND DELIVERY TIMELINE

2.1 Onboarding

Client agrees to complete Provider's onboarding intake form within five (5) business days of executing this Agreement. The intake form collects all brand, content, business information, and configuration data required for site and voice agent setup. Enterprise clients will complete one intake form per site.

2.2 Site Delivery

Provider will deliver a preview site URL within seven (7) business days of receiving a complete onboarding submission. For Enterprise clients, each of the three sites will be delivered within seven (7) business days of receiving its respective complete intake. The preview is for Client review prior to public launch.

2.3 Voice Agent Setup (Growth and Enterprise)

For plans including the AI voice agent, Provider will configure and test the voice agent within an additional five (5) business days following Client approval of the preview site. Client agrees to participate in at least one test call before the agent goes live.

2.4 Public Launch

Provider will connect Client's domain and launch the site within three (3) business days of Client's written approval of the preview.

2.5 Setup Fee

A one-time setup fee of **one hundred dollars ($100)** applies to **Starter** plans only and is due upon execution of this Agreement. This fee covers onboarding labor (site review, content QA, domain connection) and is non-refundable once setup work begins. Growth and Enterprise plans carry no separate setup fee; onboarding labor is included in the monthly fee.

3. FEES AND BILLING

3.1 Monthly Subscription

Client agrees to pay the monthly fee for the selected Plan, billed in advance on the first calendar day of each service month. The first month's fee is prorated from the launch date.

3.2 Payment Method

Client authorizes recurring automatic billing via the payment method on file (credit card, ACH, or other method offered). Failed payments will be retried within 72 hours. Service may be suspended after seven (7) days of unpaid invoice.

3.3 Price Changes

Provider will provide at least thirty (30) days written notice of any price increase. Client may cancel within that notice period without penalty if they do not accept the new rate.

3.4 Late Fees

Invoices unpaid for more than fifteen (15) days are subject to a $25 late fee.

3.5 No Refunds for Partial Months

Monthly fees are non-refundable for partial months. Cancellation takes effect at the end of the current paid month (subject to the notice periods in Section 14).

4. WHAT IS INCLUDED VS NOT INCLUDED

4.1 Included in All Plans

- Hosting on enterprise-grade infrastructure (Vercel)
- SSL certificate and secure HTTPS delivery
- Daily backups and uptime monitoring
- One Google Analytics 4 property setup per site
- Monthly performance report delivered by the 5th of each month

4.2 Content Edit Allowances

Plan-specific monthly content edit limits (text changes, image swaps, hours updates, new testimonials, new FAQs):

- **Starter**: up to two (2) edits per month
- **Growth**: up to two (2) edits per month
- **Enterprise**: up to six (6) edits per month, pooled across all sites

4.3 Included in Growth and Enterprise

- Dedicated business phone number(s) (provided by Provider, owned by Provider — see Section 9). Growth includes one number; Enterprise includes one number per site (up to three total).
- AI voice agent handling inbound calls 24/7
- AI outbound callback to leads who submit forms on Client's website
- Auto-generated transcript and summary for every call, stored in Client's dashboard
- Monthly call volume allotment (see Section 5)

4.4 Not Included

The following are explicitly outside the scope of monthly service. Any of these may be purchased as add-ons at then-current rates:

- Custom design beyond initial template configuration
- New page creation beyond the initial site map
- E-commerce functionality, payment processing, or shopping carts
- SEO consulting, content marketing, paid ads, or social media management
- Email marketing platforms or campaign creation
- CRM integration beyond standard Airtable/Make.com automation
- Custom voice agent flows beyond standard qualification logic

- Call minutes exceeding the Plan allotment (overages billed at $0.20/minute)
- Additional websites beyond the Plan's site count

4.5 Excessive Edit Requests

Edit requests beyond the monthly limit are billed at $75 per request or available in 10-request packs for $500. Provider will notify Client before billing any add-on work.

5. CALL VOLUME AND OVERAGES

5.1 Monthly Allotments

- **Growth**: up to 500 call-minutes per month per site
- **Enterprise**: up to 2,000 call-minutes per month, pooled across all sites

5.2 Overage Billing

Call-minutes exceeding the Plan allotment are billed at **$0.20 per minute** on the next monthly invoice.

5.3 Plan Upgrades and Downgrades

Client may upgrade Plans at any time. Plan changes take effect on the next billing cycle. Downgrades require written notice consistent with the notice period for the originating tier (see Section 14).

6. AI VOICE AGENT — ACKNOWLEDGMENT AND LIMITATIONS

6.1 Nature of the Service

The AI voice agent is an automated conversational system. It is designed to greet callers, answer questions using information Client provides during onboarding, qualify leads, and collect contact information. **The AI voice agent is not a human receptionist and does not have judgment, discretion, or real-time access to Client's calendar, pricing, or operations unless explicitly configured.**

6.2 Information Accuracy

The AI voice agent answers caller questions using only information Client provides during onboarding and any subsequent updates. Provider will not configure the agent to answer questions outside Client's provided information. **Client is solely responsible for the accuracy, completeness, and currency of information provided to Provider for use by the AI agent.**

6.3 Pricing and Commitments

The AI voice agent is configured to **never quote prices or make commitments on Client's behalf**. The agent will defer all pricing, scheduling commitments, and contractual discussions to

Client.

6.4 No Replacement for Licensed Professional Advice

The AI voice agent does not provide legal, medical, financial, or other professional advice. For service businesses in regulated industries (medical, legal, financial), Client is responsible for ensuring the agent's configuration complies with applicable professional conduct rules.

6.5 Hallucination Risk

While Provider takes reasonable measures to limit AI hallucination, including restricting the agent to Client-provided information, **AI systems may occasionally produce inaccurate or unexpected outputs**. Client acknowledges this risk. Provider's responsibility is limited to using commercially reasonable efforts to monitor and correct identified issues; Provider is not liable for damages arising from individual AI outputs.

6.6 AI Caller Disclosure

Some jurisdictions require businesses to disclose to callers that they are speaking with an AI rather than a human. **Client is responsible for informing Provider during onboarding whether such disclosure is required in jurisdictions where Client or Client's customers are located.** Upon written request, Provider will configure the AI voice agent's greeting to include appropriate disclosure language. Provider relies on Client's representations about jurisdictional requirements and assumes no independent obligation to monitor changes in disclosure law.

7. CALL RECORDING AND CONSENT

7.1 Recording

All calls handled by the AI voice agent are recorded and transcribed for service delivery, quality assurance, and Client's call log. Recordings and transcripts are stored securely and accessible to Client through their dashboard.

7.2 Consent Framework

Recording consent laws vary by state. The United States operates under two general frameworks:

- **One-party consent**: only one party to the call must consent to recording. Florida operates under one-party consent for telephone communications under Fla. Stat. § 934.03. In one-party jurisdictions, the AI agent — operating on Client's behalf — serves as the consenting party.
- **Two-party (all-party) consent**: all parties to the call must consent. States including but not limited to California, Illinois, Maryland, Massachusetts, Michigan, Montana, New Hampshire, Pennsylvania, and Washington require all-party consent.

7.3 Client Responsibility for Compliance

If Client operates in or serves customers in two-party consent jurisdictions, **Client is responsible for ensuring the AI agent's greeting includes appropriate recording disclosure**. Provider will configure this on request during onboarding. Client represents that they have all necessary rights and authorizations to deploy the AI voice agent for their business and to record calls under applicable law in the jurisdictions where Client and Client's customers are located.

7.4 Data Retention

Call recordings and transcripts are retained for ninety (90) days by default. Client may request earlier deletion or extended retention in writing. Industry-regulated retention (e.g., HIPAA, financial services) is Client's responsibility to specify.

8. CLIENT RESPONSIBILITIES

Client agrees to:

- Provide accurate and complete business information during onboarding
- Notify Provider promptly of any changes to business name, address, phone number, services, hours, or pricing
- Notify Provider of any state-specific AI disclosure or recording consent requirements (see Sections 6.6 and 7.3)
- Review the preview site and AI agent before launch and provide written approval
- Not bypass or modify the AI voice agent configuration without Provider's knowledge
- Comply with all applicable laws including TCPA (Telephone Consumer Protection Act), CAN-SPAM, GDPR (if applicable), state recording consent laws, and industry-specific regulations
- Not use the Service for unlawful, deceptive, harassing, or fraudulent purposes
- Maintain ownership and authorization for all content provided to Provider (text, images, testimonials, branding)
- Promptly report any concerns about AI agent behavior or call outcomes

9. PHONE NUMBER OWNERSHIP

9.1 Provider Ownership

All dedicated business phone numbers provided as part of Growth and Enterprise plans are owned by Provider's master telephony account (currently Twilio). Client receives exclusive use of the number(s) for the duration of the Agreement.

9.2 Display of the Numbers

Client may display assigned numbers on their websites, business cards, vehicles, marketing materials, and Google Business Profile. Each number functions identically to any local business phone number.

9.3 Termination — Number Disposition

Upon termination of this Agreement, Client may choose one of the following options for each assigned phone number:

Option A — Release: Provider releases the number back to the public pool. Client has no further claim to the number. Default option if Client makes no selection within fourteen (14) days of termination.

Option B — Port to Client: Client may port the number to a carrier of their choice. Client is responsible for the porting process at the receiving carrier. **Provider charges a one-time administrative fee of $50 per number** to facilitate the port-out (covering Provider's labor and Twilio's per-number port fee). For Enterprise clients porting multiple numbers, the fee is $50 per number ported (e.g., porting all three Enterprise numbers = $150 total). Port-out requests must be initiated within thirty (30) days of termination, after which Option A applies.

9.4 Number Hold During Dispute

If termination is contested, Provider may hold the number(s) for up to thirty (30) days while disputes are resolved.

10. INTELLECTUAL PROPERTY

10.1 Client Content

Client retains full ownership of all content Client provides: business name(s), logo(s), photographs, copy submitted via the onboarding form, testimonials, and any subsequent content updates. Client grants Provider a non-exclusive license to use this content solely to deliver the Services.

10.2 Site Code and Configuration

Each website is built on Provider's proprietary Next.js template. Client receives a license to use the deployed site(s) for the duration of this Agreement. **Upon termination, Client does not receive ownership of the underlying template code.** Client may export their content data (text, images, configuration values) in a portable format upon request.

10.3 Provider Tools

Provider's intake schema, orchestration scripts, agent prompts, and operational tooling are Provider's intellectual property and are not transferred to Client under any circumstance.

10.4 Exit Data Package

Upon termination and upon Client's written request within thirty (30) days, Provider will deliver:

- A static HTML/CSS export of the deployed site(s) at the time of termination
- An export of Client's call logs and transcripts (CSV format)
- A copy of Client's content data (JSON format)

For Enterprise clients, the exit package covers all sites under the Agreement. Client is responsible for finding a new hosting provider and rebuilding any dynamic functionality (forms, voice agent).

11. WARRANTIES AND DISCLAIMERS

11.1 Service Warranty

Provider warrants that the Services will be performed in a professional and workmanlike manner consistent with industry standards.

11.2 Uptime

Provider targets 99.5% monthly uptime for each website. Uptime is measured by the hosting provider (Vercel). Provider does not warrant uninterrupted or error-free service. Scheduled maintenance and third-party outages are excluded from uptime calculations.

11.3 Voice Agent Performance

The AI voice agent is provided on an "as-available" basis. **Provider does not warrant that the AI agent will handle every call correctly, capture every lead, or never produce unexpected outputs.** Performance depends on caller behavior, audio quality, third-party services (Retell AI, Twilio), and the accuracy of Client-provided configuration data.

11.4 Disclaimer

TO THE MAXIMUM EXTENT PERMITTED BY LAW, EXCEPT AS EXPRESSLY STATED IN THIS AGREEMENT, PROVIDER DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

12. LIMITATION OF LIABILITY

12.1 Aggregate Cap

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, PROVIDER'S TOTAL AGGREGATE LIABILITY FOR ANY AND ALL CLAIMS ARISING OUT OF OR RELATED TO THIS AGREEMENT OR THE SERVICES SHALL NOT EXCEED THE GREATER OF: (A) THE TOTAL FEES PAID BY CLIENT TO PROVIDER IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM, OR (B) ONE HUNDRED DOLLARS ($100).

12.2 Exclusion of Indirect Damages

IN NO EVENT SHALL PROVIDER BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF REVENUE, LOSS OF CUSTOMERS, LOSS OF GOODWILL, LOSS OF DATA, OR BUSINESS INTERRUPTION, EVEN IF PROVIDER HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

12.3 AI-Specific Liability

PROVIDER SHALL HAVE NO LIABILITY WHATSOEVER FOR DAMAGES ARISING FROM INDIVIDUAL AI VOICE AGENT OUTPUTS, INCLUDING BUT NOT LIMITED TO MISSED CALLS, INCORRECT INFORMATION PROVIDED BY THE AGENT, MISSED APPOINTMENTS, OR LEADS LOST DUE TO AGENT MALFUNCTION OR HALLUCINATION.

12.4 Third-Party Service Outages

Provider relies on third-party services including Vercel (hosting), Twilio (telephony), Retell AI (voice agent), Make.com (automation), and Airtable (call logs). Provider is not liable for outages, errors, or service changes by these third-party providers, but will use commercially reasonable efforts to mitigate impact and restore service.

13. INDEMNIFICATION

13.1 By Client

Client agrees to indemnify, defend, and hold harmless Provider and its officers, employees, and agents from any claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from:

- Client's content (including claims of infringement, defamation, or false advertising)
- Client's violation of applicable law including TCPA, CAN-SPAM, state recording consent laws, AI disclosure laws, and industry regulations
- Inaccurate, incomplete, or unauthorized information Client provides for use by the AI voice agent
- Client's failure to inform Provider of jurisdictional disclosure or recording consent requirements (Sections 6.6 and 7.3)
- Client's use of the Service in violation of this Agreement

13.2 By Provider

Provider agrees to indemnify Client against third-party claims that Provider's underlying template code infringes the intellectual property rights of a third party, provided Client promptly notifies Provider of the claim and cooperates in the defense.

14. TERM AND TERMINATION

14.1 Term

This Agreement begins on the Effective Date and continues month-to-month until terminated by either party.

14.2 Termination for Convenience — Notice Periods

Either party may terminate this Agreement at the end of any monthly billing cycle with written notice to the other party. Notice may be delivered by email to the addresses on file. **Required notice periods vary by Plan:**

- **Starter**: thirty (30) days written notice
- **Growth**: thirty (30) days written notice
- **Enterprise**: sixty (60) days written notice (longer notice accounts for the additional operational work of decommissioning multiple sites, phone numbers, and integrations)

14.3 Termination for Breach

Either party may terminate immediately if the other party materially breaches this Agreement and fails to cure within fifteen (15) days of written notice. Non-payment of fees is a material breach.

14.4 Effect of Termination

Upon termination:

- All monthly fees through the end of the applicable notice period remain payable
- Provider will continue Services through the end of the paid period
- Phone number disposition follows Section 9.3
- Data export follows Section 10.4
- Sections 9, 10, 11, 12, 13, 15 survive termination

15. GENERAL PROVISIONS

15.1 Governing Law

This Agreement is governed by the laws of the State of Florida, without regard to conflict of law principles.

15.2 Dispute Resolution

The parties will attempt to resolve disputes through good-faith negotiation. If unresolved within thirty (30) days, disputes shall be resolved by binding arbitration in Orange County, Florida, under the rules of the American Arbitration Association. **Each party waives the right to a jury trial and to participate in any class action.**

15.3 Notices

All formal notices under this Agreement must be in writing and delivered by email with read receipt requested, or by certified mail. Routine communications may occur via the parties' standard email channels.

15.4 Entire Agreement

This Agreement, including Schedule A, constitutes the entire agreement between the parties and supersedes all prior agreements and understandings.

15.5 Amendments

Modifications must be in writing and signed by both parties. Provider may update Schedule A pricing and service descriptions for future billing cycles upon thirty (30) days notice as set forth in Section 3.3.

15.6 Assignment

Client may not assign this Agreement without Provider's written consent. Provider may assign to a successor entity in connection with a merger, acquisition, or sale of all or substantially all of its assets.

15.7 Severability

If any provision is held unenforceable, the remainder of the Agreement remains in effect.

15.8 Force Majeure

Neither party is liable for failure to perform due to circumstances beyond reasonable control, including natural disasters, internet outages, third-party service failures, government action, or pandemic.

SIGNATURES

PROVIDER: JUNEAU DIGITAL DESIGNS LLC

By: ________________________________
Name: ______________________________
Title: _______________________________
Date: _______________________________

CLIENT:

By: ________________________________
Name: ______________________________

Title: ________________________________
Business: ____________________________
Date: ________________________________

SCHEDULE A — PLAN DETAILS

Feature	Starter	Growth	Enterprise
Monthly fee	$117	$297	$697
One-time setup fee	$100	$0	$0
Number of websites	1	1	up to 3
Custom Next.js website	✓	✓	✓ (per site)
Hosting on Vercel	✓	✓	✓ (per site)
SSL + daily backups	✓	✓	✓ (per site)
Uptime monitoring	✓	✓	✓ (per site)
Content edits per month	2	2	6 (pooled across sites)
Monthly report	✓	✓	✓ (consolidated)
Google Analytics setup	✓	✓	✓ (per site)
Dedicated business phone number	—	1	up to 3 (one per site)
AI voice agent (inbound 24/7)	—	✓	✓ (per site)
AI outbound callback on form submit	—	✓	✓ (per site)
Call transcripts + summaries	—	✓	✓
Monthly call-minute allotment	—	500 min per site	2,000 min pooled
Overage rate	—	$0.20/min	$0.20/min
Priority (same-day) support	—	—	✓
Quarterly strategy call	—	—	✓
Cancellation notice period	30 days	30 days	60 days

Feature	Starter	Growth	Enterprise
Port-out admin fee	$50/number	$50/number	$50/number

Selected Plan: ☐ Starter ☐ Growth ☐ Enterprise **Monthly fee:** $______ **Setup fee:** $______ (Starter only — $100) **Launch date target:** ________________

For Enterprise clients, list site names below:

1. ___________________________________
2. ___________________________________
3. ___________________________________ (optional)

Document version 2.0 — Updated tier names (Starter / Growth / Enterprise), pricing ($117 / $297 / $697), Enterprise as multi-site, and per-tier cancellation notice periods.

This is a starting template. Have it reviewed by a Florida-licensed attorney before using with real clients.